

**PLJ 2021 Lahore 573 (DB)**

***Present: ABID AZIZ SHEIKH AND MIRZA VIQAS RAUF, JJ.***

**SHAKEELA NAZIR—Appellant**

**versus**

**DIRECTOR PROJECT PAKISTAN BAIT-UL-MAL, PUNJAB, LAHORE and 3 others--  
Respondents**

I.C.A. No. 762 of 2021, decided on 11.1.2021.

**Law Reforms Ordinance, 1972--**

---S. 3--Appointment on daily wages--Time to time extension--Absence from duty--Termination from service--Filing of writ petition--Dismissed--Relationship of master and servant--Scope for interference--Law is well settled that a daily wagger or contract employee is precluded to invoke constitutional jurisdiction of this Court with regard to matters relating to terms and conditions of service, as relationship interse appellant and department shall be deemed to be as of master and servant--Thus in case of breach of any of terms and conditions of contract or any other issue ensuing therefrom grouse can only be remedied by filing a suit for damages--There was no scope for interference in constitutional jurisdiction and Single Judge in Chamber has rightly proceeded to dismiss constitutional petition--Petition dismissed [Pp. 575 & 576] A & B

2020 SCMR 2068, 2019 SCMR 984, 2017 SCMR 1979, 2014 SCMR 1573, 2019 SCMR  
648 *ref.*

*Chaudhry Nazir Hussain, Advocate.*

Date of hearing: 11.1.2021.

## **ORDER**

This appeal under Section 3 of the Law Reforms Ordinance, 1972 is directed against the order dated 17th November, 2020, whereby Writ Petition No. 22826 of 2016 filed by the appellant was dismissed being devoid of any merits by the learned Single Judge in Chamber.

2. Facts in precision necessary for adjudication of instant appeal are that the appellant was appointed on daily wages as Teacher for National Center for Rehabilitation of Child Labour Orphan (NCRCLLO) School Bahawalnagar (Chishtian) on 03rd May, 2011. She served the department in above status for three years as she was awarded extension from time to time last of which was *w.e.f.* 17th January 2013 to 20th April, 2013. The appellant absented herself which resulted into her termination. The appellant while in service also moved an application to the respondents seeking her regularizationjn the light of decision taken by the Government of Pakistan Cabinet Secretariat Establishment Division Islamabad on 11th March,

2013. Having no other option she moved Writ Petition No. 22826 of 2016, which was dismissed through order under appeal dated 17th November, 2020.

3. Learned counsel for the appellant submitted that after rendering services for considerable period the appellant was entitled for her regularization. He added that writ petition was dismissed in oblivion of settled principles of law. Learned counsel emphasized that impugned order is not tenable under the law.

4. After having heard learned counsel for the appellant at considerable length, we have perused the record.

5. It is an admitted fact that the appellant was appointed on daily wages as Teacher for National Center for Rehabilitation of Child Labour Orphan (NCRCL) Bahawalnagar (Chishtian). She was allowed extension in her employment from time to time and last extension to this effect was granted *w.e.f.* 17th January, 2013 to 20th April, 2013. In the meanwhile, a decision was made by the Government of Pakistan, Cabinet Secretariat, Establishment Division, Islamabad on 11th March, 2013 for the regularization of the government employees. The appellant to this effect moved an application to the respondents but on their alleged inaction, she filed Writ Petition No. 1998 of 2016 which was disposed of *vide* order dated 25th April, 2016 with the following observations:

“4. After hearing the learned counsel for the parties, I am inclined to direct that Respondent No. 3 will look into the grievance of the petitioner and decide her pending application dated 24.10.2013 strictly in accordance with law, expeditiously, preferably within 30 days of receipt of certified copy of this order.

5. Disposed of.”

In pursuance to the order of this Court the respondents imparted information through letter dated 06th May, 2016 to the appellant to the following effect:--

“2. This is to inform that your request dated 24.10.2013 has been regretted by the Managing Director on the following grounds:--

- i. You were appointed on 30.4.2010 as daily wages Teacher-NCRCL. Your daily wages period was extended from time to time.
- ii. Last extension in daily wages period was granted from 17-01-2013 to 20-04-2013 but you attended the office last time on 18.02.2013 and left the office without any intimation/prior approval.

- iii. You admitted that when you came to know that your name was considered for regularization by the Cabinet Sub-Committee while considering the list of the employees forwarded by PBM before your leaving the service, you applied for restoration.”

It appears from the above that last extension was though granted to the appellant *w.e.f.* 17th January, 2013 to 20th April, 2013 but she absented herself *w.e.f.* 18th February, 2013 as a result she was terminated.

6. Law is well settled that a daily wager or contract employee is precluded to invoke the constitutional jurisdiction of this Court with regard to the matters relating to the terms and conditions of service, as the relationship interse appellant and department shall be deemed to be as of master and servant. Thus in the case of breach of any of the terms and conditions of contract or any other issue ensuing therefrom the grouse can only be remedied by filing a suit for damages. Reliance in this respect can be placed on *Qazi Munir Ahmed vs. Rawalpindi Medical College and Allied Hospital through Principal and others* (2019 SCMR 648) wherein the Hon'ble Apex Court, while dilating upon the issue in hand held as under:

“12. We have also noticed that the dispute between the parties related to contract employment. This Court has in various pronouncements settled the law that a contract employee is debarred from approaching the High Court in its constitutional jurisdiction. The only remedy available to a contract employee is to file a suit for damages alleging breach of contract or failure to extend the contract. Reference in this behalf may be made to *Federation of Pakistan v. Muhammad Azam Chattha* (2013 SCMR 120), where it has been held that it is a cardinal principle of law that a contract employee cannot press for reinstatement to serve for the left over period and can at the best claim damages to the extent of unexpired period of his service. Therefore, it was correctly held that the petitioner approached the wrong forum in the first place and the learned Single Judge had exceeded his jurisdiction by interfering in a purely contractual matter.”

The same view was further reiterated by the Hon'ble Supreme Court of Pakistan in the cases of *Government of Khyber Pakhtunkhwa, Workers Welfare Board through Chairman vs. Raheel Ali Gohar and others* (2020 SCMR 2068), *Maj. (Retd.) Syed Muhammad Tanveer Abbas and another vs. Federation of Pakistan through Secretary, Ministry of Interior and another* (2019 SCMR 984), *Chairman NADRA. Islamabad, through Chairman, Islamabad and another vs. Muhammad Ali Shah and others* (2017 SCMR 1979) and *M/o IPC through Secretary and others vs. Arbab Altaf Hussain and others* (2014 SCMR 1573).

7. After having an overview of the principles laid down in the above noted judgments, we are of the considered opinion that there was no scope for interference in constitutional jurisdiction and the learned Single Judge in Chamber has rightly proceeded to dismiss the constitutional petition.

8. For the foregoing reasons, instant appeal fails, resultantly it is **dismissed in limine.**  
(Y.A.) Petition dismissed